

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

13. CARLA FORREST V. GARY FORREST

PFL20180899

Petitioner filed a Request for Order (RFO) on January 30, 2026, seeking modification of visitation orders made on January 15, 2026. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had attended within the prior six months. Proof of Service shows Respondent was served with only the RFO. The court notes this is a post-judgment request for modification and as such Family Code section 215 applies. Respondent was mail served without address verification.

Both parties appeared at the hearing on April 2, 2026. Petitioner requested the matter be continued to allow time to properly served Respondent. The court granted the request to continue and set the matter for a further review hearing on May 21, 2026, at 1:30 PM in Department 5.

Petitioner filed a Proof of Service on April 24, 2026, showing that Respondent was personally served with all the required documents on April 23, 2026. Petitioner requests the court allow the minor to determine whether she attends parenting time with Respondent.

Respondent filed a Responsive Declaration on May 11, 2026. The court finds this to be late filed. Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made May 8th the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court. Further there is no Proof of Service for this document, and therefore the court cannot consider it on those grounds as well.

The court has read and considered the filings as outlined above. The court finds Petitioner’s request to be akin to a motion for reconsideration, as it was filed approximately 14 days after the court’s January 16, 2026 hearing. All the information before the court currently is the same information the court had when tendering its January 16, 2026 decision. Petitioner has failed to set forth any new or different facts or law that were not available to her at the January 16th hearing. Therefore, the court finds Petitioner has failed to set forth any grounds for reconsideration. As such, all prior orders remain in full force and effect.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: THE COURT FINDS PETITIONER HAS FAILED TO SET FORTH ANY GROUNDS FOR RECONSIDERATION. AS SUCH, ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

14. RACHEL GESSNER V. MATTHEW GESSNER

25FL1097

Petitioner filed a Request for Order (RFO) on February 23, 2026, requesting visitation as well as child support orders. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on April 30, 2026, and a review hearing on May 21st. Proof of Service shows Respondent was personally served with all the required documents on April 8, 2026.

Both parties appeared at CCRC on April 30th and reached a full agreement. A report with a copy of the parties agreements was filed with the court on May 8, 2026. Copies were mailed to the parties the same day.

Respondent filed a Responsive Declaration on May 8, 2026. It was served on Petitioner electronically on May 8, 2026. Respondent requests the same orders parties agreed to in CCRC. Additionally, Respondent has proposed a holiday schedule. Respondent also requests Petitioner be imputed with income for 40 hours per week, rather than the 32 hours she is currently working. Respondent requests the court credit any arrears with the minors' private school tuition he currently pays at a rate of \$2,105 per month.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties as set forth in the May 8th CCRC report to be in the best interest of the minors. The court adopts the agreements with the following additions; the court adopts the holiday scheduled as set forth in Respondent's declaration.

As to child support, the court denies Respondent's request to impute Petitioner with income at 40 hours per week. Respondent has not established that Petitioner has the ability or opportunity to work the additional eight hours. Therefore, the court will utilize Petitioner's income at \$65 per hour for 32 hours per week.

Utilizing the figures as set forth in the parties' Income and Expense Declarations, the court finds guideline child support to be \$2,253 payable from Respondent to Petitioner (see attached X-Spouse). The court orders Respondent to pay Petitioner \$2,253 as and for guideline child support effective March 1, 2026, with future payments on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$6,759 for the months of March through May inclusive. The court deducts the amount of school tuition from the